

Illustrations by SIDDHANT JUMDE

Takeaways

- **Couples need to submit a notarised application, recording parent details**
- **The registrar's office would notify parents within 10 working days, including via WhatsApp**
- **30-day waiting period mandatory, while papers are checked, uploaded**
- **"Outrageous" state intervention, say activists**

women. In villages, girls are still seen as a commodity to be traded. At a time when Gujarat is trying to progress, this kind of a regressive law solidifies patriarchy and caste lines."

She points to National Family Health Survey data that 24.3 per cent of women are married before they turn 18, the legal age. "What kind of an assumption is that parents only want the best for their daughter? The data reveals otherwise," she adds. Cutting words, but resonating with experiential truth, since Kathuria works in rescuing victims of domestic abuse and oppressive customs such as 'satapata'—an exchange marriage where the idea of bridal consent diminishes to near-zero in the face of what's often akin to a barter.

MENACING SPECTRE

Shockingly, the bill paints every union, of any age, with the same brush of suspicion, raising the menacing spectre of state oversight into inter-caste or interfaith marriages. This has raised serious concerns about personal liberty and the right to privacy, with perfectly consensual unions between adults at risk of being termed 'unconstitutional'. "At 18, a person is not considered 'juvenile' if they commit a crime. They can vote, buy a property, drive a vehicle, but they are deemed incapable of deciding who they wish to spend their life with. This is outrageous," says lawyer Anand Yagnik.

As for 'love jihad', the state in 2021 amended the Freedom of Religion Act, 2003, to include conversions linked to marriage. The 2003 act was enacted to regulate religious conversions in the state. It criminalises conversion by force, fraud or allurement and requires prior intimation to district authorities before a person changes religion.

The amendment made conversion "by marriage" or for the purpose of marriage punishable if deemed unlawful. It enhanced penalties, allowed relatives to file complaints, and shifted the burden of proof onto the accused to show the conversion was voluntary. The Gujarat HC stayed its key provisions upon a challenge, particularly those presuming interfaith marriages suspect. The case is now pending before the Supreme Court. Now the new bill suspends the constitutional validity of love. ■

▶ ANDHRA PRADESH

Trials in Instant Justice?

A series of 'deaths by drowning' of child-rape accused raises questions

By **Prasad Nichenametla**

OFFENDERS OVERCOME BY FEAR OR REMORSE?

Or instant justice? The latter, if that suggestion holds, would have been an act of retribution meant to assuage victim families and calm public fury. No proof exists of a conclusive sort, but the circumstantial evidence is beginning to add up. Yes, a peculiar trend is evident in Andhra Pradesh, where persons accused of sexual assault and murder of underage girls are being found dead in water bodies, days after the heinous crime. The incidents are drawing comparisons to the infamous killing of four accused by the Telangana Police in the 2019 rape-cum-murder of Disha, a young Hyderabad veterinarian.

ENCOUNTERED?

At least three such incidents have taken place in the past eight months in the state—in Kadapa, Kakinada and Annamayya districts. Since the chances are low that fatal levels of remorse strike three separate individuals serially, human rights activists are questioning the manner in which the deaths occurred, raising the spectre of "extra-judicial killings". The locals in the areas where the crimes occurred, though, appear contented. The usual public response in recent years to such scenarios has been to question hu-